

PENNSYLVANIA CANNABIS FACILITIES ZONING ORDINANCE

Model Ordinance 2025-A

**Recommended for Adoption by Municipalities Pursuant to
Pennsylvania Cannabis Regulation and Economic Opportunity Act
(SB420)**

Status: Non-Mandatory Template

Date: November 2025

Prepared by: Daniel Hughes, 29th Senatorial District Constituent

SECTION 1: PURPOSE AND AUTHORITY

(a) Purpose.

This ordinance establishes reasonable time, place, and manner regulations for cannabis cultivation, processing, and retail facilities within [MUNICIPALITY NAME], consistent with the Pennsylvania Cannabis Regulation and Economic Opportunity Act and the municipality's police powers to regulate land use.

(b) Authority. This ordinance is enacted pursuant to:

(1) Pennsylvania Municipalities Planning Code (53 P.S. § 10101 et seq.)

(2) Municipality's Home Rule Charter / Second Class Township Code [SELECT APPLICABLE]

(3) Pennsylvania Cannabis Regulation and Economic Opportunity Act, Section 8 (Local Regulation)

(c) Non-Prohibition Clause.

This ordinance regulates location, security, and operational standards of licensed cannabis facilities. It does not prohibit such facilities, impose numerical caps, or discriminate against cannabis businesses in a manner inconsistent with state law.

SECTION 2: DEFINITIONS

(a) "Cannabis Facility" means any premises licensed by the Pennsylvania Cannabis Control Authority for cultivation, processing, testing, distribution, or retail sale of cannabis.

(b) "Retail Facility" means a cannabis dispensary licensed to sell cannabis products directly to consumers aged 21 and over.

(c) "Cultivation Facility" means any premises licensed to grow cannabis, including agricultural cultivators, small cultivators, and standard cultivators.

(d) "Processing Facility" means any premises licensed to manufacture cannabis products, including extraction, infusion, and packaging operations.

(e) "Sensitive Use" means:

- (1) K–12 schools**
- (2) Licensed childcare facilities**
- (3) Playgrounds or public parks with playground equipment**
- (4) Youth centers primarily serving minors**
- (5) Substance abuse treatment facilities**

SECTION 3: PERMITTED LOCATIONS (BY ZONING DISTRICT)

(a) Retail Facilities.

Permitted in:

- ☐ Commercial (C-1, C-2)**
- ☐ Mixed-Use (MU)**
- ☐ Downtown Business District (DBD)**
- ☐ Highway Commercial (HC)**

Not permitted in:

- ☐ Residential districts (R-1, R-2, R-3)**
- ☐ Agricultural/Rural (AG, RR)**

(b) Cultivation Facilities (Agricultural).

Permitted in:

- ☐ Agricultural (AG)**
- ☐ Rural Residential (RR) if lot size >5 acres**
- ☐ Industrial (I-1, I-2)**

Special Exception:

- ☐ Commercial (lot size >2 acres)**

(c) Processing Facilities.

Permitted in:

- ☐ Industrial (I-1, I-2)**
- ☐ Light Manufacturing (LM)**
- ☐ Business Park (BP)**

Special Exception:

- ☐ Heavy Commercial (C-3)**

SECTION 4: SETBACK AND SEPARATION REQUIREMENTS

(a) Sensitive Use Setbacks.

(1) Retail Facilities:

- Minimum 1,000 feet from any Sensitive Use**

- Measured in straight line from primary entrance to primary entrance
- (2) Cultivation/Processing:
 - No sensitive-use setback unless required by zoning district
- (b) Residential Setbacks.
 - (1) Retail: Minimum 200 ft from any residential zoning district
 - (2) Processing: Minimum 500 ft
 - (3) Cultivation: Standard agricultural setbacks
- (c) Facility Clustering.
 - (1) No required separation between cannabis facilities
 - (2) Standard commercial spacing rules apply
- (d) Pre-Existing Sensitive Uses.

Sensitive uses established after a licensed retail facility opens do not affect the facility's legality; it is grandfathered.

SECTION 5: OPERATIONAL STANDARDS

- (a) Security Requirements.
 - (1) 24/7 monitored alarm system
 - (2) Video surveillance at all entry/exit points; retain 30 days
 - (3) Adequate exterior lighting (2.0 foot-candles at property line)
 - (4) Secure storage when closed
- (b) Building and Fire Safety.
 - (1) Compliance with Pennsylvania Uniform Construction Code
 - (2) Fire marshal approval
 - (3) Compliance with all applicable codes
- (c) Odor Control (Cultivation/Processing).
 - (1) Best Available Control Technology (BACT)
 - (2) Filtration achieving 99% odor removal
 - (3) If 3+ verified odor complaints in 30 days → required upgrade within 60 days
- (d) Hours of Operation.

Retail:

 - Mon–Sat: 9 AM – 9 PM
 - Sun: 10 AM – 6 PM
 - Municipality may extend by resolution

Cultivation/Processing: No limits
- (e) Signage.
 - (1) Must follow state advertising rules
 - (2) One exterior sign

- (3) No flashing/illuminated signs**
- (4) No cannabis leaf imagery**
- (5) Follows standard commercial sign rules**

SECTION 6: APPLICATION AND APPROVAL PROCESS

(a) Zoning Permit Required.

- (1) Required before operations**
- (2) Fee: \$250–\$500 (not exceeding state application fee)**

(b) Application Contents.

- (1) Copy of state license (provisional or final)**
- (2) Site plan including boundaries, setbacks, parking, security**
- (3) Operational plan including hours, odor control, waste disposal, employee parking**

(c) Review Timeline.

- (1) 45-day decision window**
- (2) No action = automatic approval**
- (3) Denials must be written with specific findings**

(d) Grounds for Denial.

- (1) Setback violations**
- (2) Prohibited zoning district**
- (3) Inadequate security plan**
- (4) Documented traffic/parking hazard**
- (5) Fraud/misrepresentation**

Not valid grounds:

- General opposition to cannabis**
- Applicant character (beyond relevant criminal history)**
- Economic competition**
- Aesthetic complaints beyond signage rules**

SECTION 7: ENFORCEMENT

(a) Violations and Penalties.

- (1) Operating without permit: \$500/day**
- (2) Operational standard violations: \$250/day**
- (3) Each day counts separately**

(b) Revocation.

May occur if:

- (1) State license revoked**
- (2) Violations persist for >30 consecutive days**
- (3) Nuisance: 3+ verified complaints in 90 days**

Requires hearing with 30-day notice.

(c) Appeals.

Appeal to [ZONING HEARING BOARD / BOROUGH COUNCIL] within 30 days.

SECTION 8: SEVERABILITY

If any part of this ordinance is held invalid, the remainder stays in effect.

SECTION 9: EFFECTIVE DATE

Effective [30/60] days after adoption, or upon the effective date of the Pennsylvania Cannabis Regulation and Economic Opportunity Act, whichever is later.

ADOPTION CERTIFICATION

This Model Ordinance 2025-A was prepared by Daniel Hughes, 29th Senatorial District Constituent, as a public service to Pennsylvania municipalities implementing SB420.

Municipalities may adopt, modify, or reject this template based on local needs and legal counsel.

For technical assistance:

Pennsylvania Municipal League – www.pml.org

Pennsylvania State Association of Boroughs – www.boroughs.org

Pennsylvania State Association of Township Supervisors – www.psats.org